

25NWCV02963 25NWCV02963

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25NWCV02963 Hearing Date: September 1, 2026 Dept: C

HERRERA vs VIELMA, et
al.

CASE

NO.: 25NWCV02963

HEARING: 9/1/26 @ 9:30 AM

#6

TENTATIVE RULING

Plaintiff Rosa Herrera's
Motion to Tax Costs is DENIED.

Defendant to give
NOTICE.

Plaintiff

ROSA HERRERA (Plaintiff) moves to tax the full amount of costs claimed
by Defendants JACQUELINE LUGO VIELMA and FRANCISCO VIELMA (Defendants) pursuant
to CCP § 1032.

Background

Plaintiff ROSA HERRERA (Plaintiff) is the Judgment Creditor in the
matter of Rosa Herrera v. Francisco Vielma, et. al. LASC BC612422
(Judgment Case). (Compl., ¶ 1.) The

Judgment Case was filed on March 2, 2016.

On August 17, 2022, Plaintiff obtained a judgment in the base amount of \$127,440 against Defendant FRANCISCO VIELMA in the Judgment Case. (Compl., ¶ 6.)

In the instant action, filed on August 18, 2025, Plaintiff alleges that on or around August 3, 2016, during the litigation of the Judgment Case, Defendant Vielma transferred the property at 9709 Samoline Ave, Downey, CA 90240, which he held as his sole and separate property, to himself and JACQUELINE VIELMA as husband and wife. (Compl., ¶ 9, Exh. A.) Plaintiff further alleges that the transfer was done with the intent to hinder, delay or defraud the Plaintiff by placing the Transferred Property out of reach of Plaintiff's claims. (Compl., ¶ 18.)

On February 25, 2026, the Court sustained, without leave to amend, Defendant's demurrer on claim preclusion grounds. The Court found that the instant action was barred because the remedy Plaintiff seeks is one which Plaintiff could have obtained in the judgment case.

Legal Standard

Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. (CCP § 1032(b).)

The losing party may dispute any or all of the items in the prevailing party's memorandum of costs by a motion to strike or tax costs. (CRC 3.1700(b).) If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (Ladas v. California State Automotive Assoc. (1993) 19 Cal.App.4th 761, 773-774.) On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (Ibid.)

Discussion

Code of Civil Procedure § 1032(a)(4) describes four categories of litigants that automatically qualify as prevailing parties, including a defendant in whose favor a dismissal is entered. The Court

has no discretion to deny prevailing party status to a litigant that falls within one of these four categories. (Charton v. Harkey (2016) 247 Cal.App.4th 730, 736-737; In re Tobacco Cases II (2015) 240 Cal.App.4th 779, 806.)

“Prevailing party” includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the “prevailing party” shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034. (CCP § 1032(a)(4).)

The defendant is entitled to recover costs whether the dismissal is with or without prejudice. (Mon Chong Loong Trading Corp. v. Superior Court (2013) 218 Cal.App.4th 87, 93–94 [defendant is entitled to costs even if potential exists that plaintiff may refile same action.])

Plaintiff argues that Defendant is not the prevailing party under Code of Civil Procedure section 1032 because Plaintiff obtained a net monetary recovery when Defendant paid the full judgment plus interest in the judgment case after this fraudulent-transfer action was filed.

The Court finds that Defendant is the prevailing party in the instant action as defined under section 1032(a)(4). Plaintiff argues (and Defendant does not deny) that Defendant only satisfied the judgment in the judgment case after the instant action was filed. But the monies Defendant paid Plaintiff satisfied the judgment in the judgment case, not the instant action. Defendants are the prevailing parties in the instant action because their demurrer was sustained without leave to amend and the Complaint was later dismissed with prejudice. Defendants seek motion and filing fees in the amount of \$1015.45 relating to the demurrer. These costs were properly incurred.

Accordingly, Plaintiff’s motion to tax costs is DENIED.